

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Shola Gbemi	Team: Squad #05	CCRB Case #: 201810231	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 12/09/2018 3:00 PM	Location of Incident: 37th Street and Ditmars Boulevard	18 Mo. SOL 1/24/2021	Precinct: 114		
Date/Time CV Reported Mon, 12/10/2018 10:37 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 12/10/2018 10:37 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Alexandru Boldurvoinescu	03378	947986	114 PCT
2. POM Niklas Locke	26633	930578	114 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Nicholas Mansfield	00972	927127	114 PCT
2. POM Emanuel Vargas	10404	961403	114 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Alexandru Boldurvoinescu	Abuse: Police Officer Alexandru Boldurvoinescu refused to provide his shield number to § 87(2)(b)	A . Unsubstantiated
B . POM Niklas Locke	Abuse: Police Officer Niklas Locke refused to provide his shield number to § 87(2)(b)	B . Unsubstantiated
C . POM Niklas Locke	Abuse: Police Officer Niklas Locke threatened to arrest § 87(2)(b)	C . Unsubstantiated

Summary of Complaint

On December 10, 2018, § 87(2)(b) filed the following complaint by phone with the CCRB.

On December 9, 2018, at approximately 3:00 p.m., § 87(2)(b) had a dispute with another pedestrian at the intersection of 37th Street and Ditmars Boulevard. § 87(2)(b) alerted Police Officers Niklas Locke and Alexandru Boldurvoinescu of the 114th Precinct and told them to arrest the pedestrian. After the officers refused to arrest the pedestrian, § 87(2)(b) them both for their shield numbers. PO Boldurvoinescu and PO Locke allegedly refused to provide their shield numbers to § 87(2)(b) (**Allegations A-B: Abuse of Authority, unsubstantiated**). PO Locke allegedly told § 87(2)(b) that he was lucky that he did not get arrested (**Allegation C: Abuse of Authority, unsubstantiated**).

The investigation obtained surveillance footage from a Trade Fare Supermarket located at the intersection of 37th Street and Ditmars Boulevard (BR02).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Alexandru Boldurvoinescu refused to provide his shield number to § 87(2)(b)

Allegation (B) Abuse of Authority: Police Officer Niklas Locke refused to provide his shield number to § 87(2)(b)

§ 87(2)(b) provided accounts of the incident during his initial intake call, during a later phone statement, and at an in-person interview (BR01; BR07; BR08). § 87(2)(g)

§ 87(2)(b) recounted that the officers refused his demand that they arrest the pedestrian with whom he was arguing, and that they returned to sit in their vehicle. § 87(2)(b) called the 114th Precinct stationhouse to request a supervisor before approaching the officers' vehicle and asking both officers for their shield numbers. PO Locke replied, "Stay right there," but neither officer stated his shield number to § 87(2)(b). In his phone statement, § 87(2)(b) recounted that he asked officers for their names as well as their shield numbers, but in his sworn statement he specified that he only asked for their shield numbers. Sergeant Nicholas Mansfield of the 114th Precinct later arrived at the location, and § 87(2)(b) asked him for PO Locke and PO Boldurvoinescu's names. Sgt. Mansfield wrote down the officers' names and shield numbers for § 87(2)(b). § 87(2)(b) correctly provided the officers' names and shield numbers when he filed the complaint.

PO Boldurvoinescu could not recall if § 87(2)(b) requested his or PO Locke's shield numbers (BR04). PO Boldurvoinescu recounted that Sgt. Mansfield had a conversation with § 87(2)(b) upon arriving on scene. PO Boldurvoinescu could not hear the substance of this conversation. Afterwards, § 87(2)(b) approached PO Boldurvoinescu's vehicle, looked at his shield, and wrote something down. PO Boldurvoinescu assumed that § 87(2)(b) was writing down his name and shield number.

PO Locke denied that § 87(2)(b) requested his shield number at any point during the incident (BR03). PO Locke recounted that § 87(2)(b) asked Sgt. Mansfield for his shield number, that Sgt. Mansfield told § 87(2)(b) “You can go write it down,” and that § 87(2)(b) approached PO Locke’s vehicle, looked at his shield, and wrote something down on a piece of paper (BR03).

The surveillance footage from the Trade Fare Supermarket did not capture § 87(2)(b) interaction with the officers at their vehicle, and the footage did not have audio (BR02).

§ 87(2)(g)
Therefore, it is recommended that **Allegations A-B** be closed as **unsubstantiated**.

Allegation (C) Abuse of Authority: Police Officer Niklas Locke threatened to arrest

§ 87(2)(b)
§ 87(2)(b) recounted that after he asked the officers for their shield numbers, he told both officers that he would report them to the CCRB. PO Locke replied, “You’re lucky you didn’t get arrested.” Sgt. Mansfield had not yet arrived on scene at the time PO Locke made the alleged statement.

PO Locke denied telling § 87(2)(b) that he was lucky that the officers had not arrested him. PO Boldurvoinescu had no recollection of hearing PO Locke make that statement. Both officers testified that § 87(2)(b) did not behave in a manner that would have warranted his arrest.

§ 87(2)(g)
Therefore, it is recommended that **Allegation C** be closed as **unsubstantiated**.

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to six CCRB complaints and has been named as a victim in three allegations (BR05):
 - § 87(2)(b)
- Police Officer Niklas Locke has been an MOS for 17 years and has been a subject in two CCRB complaint and two allegations, which were not substantiated. § 87(2)(g)
- Police Officer Boldurvoinescu has been an MOS for 10 years and has been a subject in two CCRB complaint and one prior allegation. § 87(2)(g)

Mediation, Civil & Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
 - [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
 - As of February 27, 2019, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this complaint (BR06).
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Squad No.: _____

Investigator:	_____	_____	_____
	Signature	Print Title & Name	Date

Squad Leader:	_____	_____	_____
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date